Galveston County District Court

Cause No. 2025-CV-0025

Megan Martin, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 11, 2025
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

Parties

Plaintiff Megan Martin is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance carrier authorized to do business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and which is responsible for the acts and omissions of its agents and adjusters in handling Plaintiff's claim.

Facts

On September 4, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Houston, Texas. Another vehicle, insured under a policy issued or serviced by Defendant, changed lanes into the lane occupied by Plaintiff without signaling, checking its mirrors, or confirmnig that the lane was clear. The vehicle struck the side of Plaintiff's vehicle in a sideswipe collision. Plaintiff immediately reported the collision to Defendant and submitted all documentation requested, including photographs, a statement, and medical records.

Negligence

The insured driver owed a duty to operate the vehicle with reasonable care, including the duty to yield before changing lanes. The insured driver breached that duty, and that breach proximately caused the collision and Plaintiff's injuries. Defendant, as the insurer, further failed to conduct a prompt and reasonable investigation, failed to fairly evaluate the claim, and delayed payment of benefits owed, in violation of its duties under the Texas Insurance Code and the Texas Administrative Code.

Damages

As a direct result of the collision, Plaintiff suffered whiplash injuries to his neck and back, along with headaches, muscle spasms, and limited range of motion. Plaintiff has incurred medical expenses, lost wages, and continuing pain and suffering, and he will liekly require future treatment. Plaintiff seeks recovery of his actual damages, statutory damages available under Teaxs law, pre- and post-judgment interest, and costs of court. Plaintiff demands damages in the amount of $236,000.00.